

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUPP030273: MELODI A CALDERWOOD vs CITY OF THOUSAND OAKS, et al.

09/03/2026 in Department 42

Motion for Summary Judgment and/or Adjudication

Motion: Defendants Rosewood at Thousand Oaks Homeowners Association (Defendant Rosewood HOA) and S.H. Chavin Inc. DBA Community Property Management's (CPM) Notice of Motion and Motion for Summary Judgment, or in the alternative, Summary Adjudication (Motion for Summary Judgment) (*Unopposed*)

Tentative Ruling: The Court GRANTS the Motion for Summary Judgment.

Background: Plaintiff Melodi A. Calderwood filed a complaint against Defendants ("Complaint") alleging three causes of action: (1) Dangerous Condition of Public Property; (2) Negligence – Premises Liability; and (3) Negligence. Only the second and third causes of action are alleged against Defendant Rosewood HOA and CPM.

Plaintiff alleges that on October 18, 2023, at approximately 7:00 a.m., she tripped and fell on a sidewalk/walkway on the southside of Regal Oak Court, approximately 30 to 40 feet south of Bronzewood Court (Subject Sidewalk), adjacent to the eastern property line of Defendant Guzman's residence located at 1700 Bronzewood Court, Thousand Oaks, California ("Guzman Property"). Plaintiff further contends the Subject Sidewalk is located in the Rosewood Community and the incident was caused by an inconspicuous and unguarded uplift of the concrete sidewalk caused by roots of trees believed to have been planted, inspected, managed, maintained, inspected and/or managed by Defendants. Finally, Plaintiff alleges that as a direct result and consequence of the incident she sustained serious injuries, including, but not limited to, right wrist fracture, concussion, forehead contusion, and injury to her right shoulder and neck.

Grounds: Defendant Rosewood HOA and CPM argue Plaintiff cannot establish causation or breach of duty because they never owned, possessed, controlled, maintained, repaired, inspected, or otherwise exercised any authority over the Subject Sidewalk.

Legal Standard

The summary judgment procedure is well-settled: "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a).) A party may also move for "summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty. . . ." (Code of Civ. Proc., § 437c, subd. (f)(1).)

"The court must grant the motion if all the papers submitted show that there is no triable issue as to any material fact [citation omitted]—that is, there is no issue requiring a trial as to any fact that is necessary under the pleadings and, ultimately, the law [citations omitted]—and that the moving party is entitled to a judgment as a matter of law [citation omitted]." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826 (*Aguilar*), 855-56, internal quotation marks omitted.) "The

purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Id.* at p. 855.) The Court must construe the evidentiary showing, and all reasonable inferences therefrom, in the light most favorable to the opposing party. (*Id.* at p. 857.)

The Court follows a three-part test in ruling on the motion: (1) "First, . . . the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar, supra*, 25 Cal.4th at p. 850); (2) "Second, . . . the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Ibid*); and (3) "Third, . . . how the parties moving for, and opposing, summary judgment may each carry their burden of persuasion and/or production depends on which would bear what burden of proof at trial." (*Id.* at p. 851.)

Discussion:

There is no opposition to the motion. The material facts proffered by moving parties are undisputed and established. Defendant Rosewood HOA and CPM met their burden of proof to establish there is no triable issue of material fact as to their individual or joint liability for any of the causes alleged in the complaint including duty, breach, and causation. The undisputed material facts demonstrate Defendant Rosewood HOA did not own, possess, control, inspect, maintain, or repair the Subject Sidewalk, and therefore owed no legal duty to Plaintiff with respect to the alleged condition. In the absence of ownership, possession, or control, Plaintiff cannot establish Defendant Rosewood HOA or CPM breached any duty or that any act or omission by Defendant Rosewood HOA or CPM was a substantial factor in causing Plaintiff's alleged injuries. Because Plaintiff does not possess, and cannot reasonably obtain, evidence necessary to establish these essential elements, there is no triable issue of material fact as to Defendant Rosewood HOA and CPM, and Defendant Rosewood HOA and CPM are entitled to summary judgment as a matter of law.

The motion is granted in its entirety.